

Name: Sam Cormode

Topic: School provided services for disabled students

Thesis focusing questions: Should IDEA funding be based partially on how much they spend for accommodating students with disabilities? How much support should the federal government give disabled students to try to instruct them in school? What extent should public schools go to in order to educate disabled students in classes with other nondisabled children? If neither the parents nor the schools can pay (or the schools are not required to) then what should families do to ensure education?

Research Proposal

- Bartlett, Larry. “Medical Services: The Disputed Related Service.” *The Journal of Special Education*, vol. 33, no. 4, 2000, pp 215.
 - Scholarly Article, from a journal focusing on Special Education.
 - The author worked at the University of Iowa, and had a PhD in Educational Instruction. He also served as an administrative law judge in Iowa for special education.
 - 3 quotes or paraphrases
 1. “[T]he first court decisions [...] following the ruling in *Tatro* declined to follow the bright line physician test [...]. Instead, the courts said that the Supreme Court had approved an approach that balanced costs and complexity, which they then used.”
 2. “The court declined to follow the multifactor burden test on the basis that to do so would encourage future litigation due to the uncertainty of result, and, thus, would be more disruptive to education.”
 3. “Without an increase in funding, it is likely that an unhealthy competition for education funding will develop between those children with medical needs, other children entitled to special education, and nondisabled children.”
 - Brings up legal background that increased the legal controversy. Shows both sides of the legal controversy, and their reasoning. Provides context and thoughts on the implications of the court ruling and possible solutions.
 - This will help my paper as a middle ground source.
- Clowes, George A. “Schools Must Pay for Health Care of Disabled Students.” *The Heartland Institute*, 1 April 1999, <https://heartland.org/opinion/schools-must-pay-for-health-care-of-disabled-students/>.
 - News opinion
 - Clowes had been a reporter/editor on education policy at The Heartland, and focused primarily on school choice and school finance.
 - 3 quotes or paraphrases
 1. “So long as the child’s needs can be serviced by someone other than a doctor [...] the cost must be shouldered by the school district.”

2. “[T]he district [argued] that the student’s complicated and expensive treatment constituted ‘medical services’.”
 3. “According to school district estimates, the total cost of providing nursing and educational services to Frey could be over \$50,000 a year.”
- This source is affecting the conversation by drawing attention to the school district’s cost based perspective, and adding doubt to the value of the Supreme Court’s judgment with the language they use.
 - This will help my paper as a “con” source, highlighting the cost the schools are forced to pay.
- Colvin, Richard Lee and David G. Savage. “Court Says Schools Must Pay Nursing Costs for Disabled.” *Los Angeles Times*, 4 March 1999, <https://www.latimes.com/archives/la-xpm-1999-mar-04-mn-13863-story.html>
 - News article
 - The first author for this source, Richard Lee Colvin, is a reporter who has reported on state and national education issues. The second, David G. Savage, is a reporter who has primarily reported on Supreme Court issues, but also worked as an education writer for 5 years.
 - 3 quotes or paraphrases
 1. “Providing in-school nurses for the nation’s 17,000 “medically fragile” children would cost an extra \$500 million each year, the [National School Boards Association] said.”
 2. “‘We worry that school districts will endure a great strain because of today’s decision,’ said Anne Bryant, executive director of the school boards association. ‘It takes the focus of schools away from being educators and into being medical service providers.’”
 3. “Special education services already are ‘grossly underfunded’ by the federal government, said Sandra Feldman, president of the American Federation of Teachers”
 - This source affects the conversation by references the possible large financial cost of extra care and the lack of sufficient funding from the government. Makes a distinction between educating students and “being medical service providers”.
 - This will help my paper as a “con” source.
 - Greenhouse, Linda. “Court Says Schools Must Pay For Needs of Disabled Pupils.” *The New York Times*, 4 March 1999, <https://www.nytimes.com/1999/03/04/us/court-says-schools-must-pay-for-needs-of-disabled-pupils.html>
 - News Article from major news source
 - The author of this article has reported on Supreme Court at the New York times, and won a Pulitzer Prize in 1998. They do not have special background in disability or education.

- 3 quotes or paraphrases
 1. “It was a substantial victory for families of children with disabilities, who have become increasingly assertive about their rights under Federal law and who in many cases have met resistance”
 2. “Without someone available at all times, the boy, a bright student who was injured in a childhood accident, would not have been able to attend school.”
 3. “ The question was [...] whether the school district had [the obligation to pay for a full-time aide] under a Federal law, the Individuals with Disabilities Education Act, which guarantees a “free appropriate public education” to students with disabilities.”
- References people fighting for their rights, an action with lots of positive connotations. Emphasizes the normal nature of disabled students, possibly countering assumptions/stereotypes. Quotes specific text from the law in question, which shows just the laws broad ideal side.
- This will help my paper as a “pro” source.
- United States, Supreme Court. *Cedar Rapids Community School Dist. v. Garret F.* 3 Mar 1999. *Legal Information Institute*, Cornell Law School, <https://www.law.cornell.edu/supremecourt/text/96-1793>.
 - Court Case
 - Justice Stevens delivered the majority opinion and has tended to vote more liberally. Justice Thomas delivered the dissenting opinion, and tends to vote more conservatively.
 - 3 quotes or paraphrases
 1. “The District pointed out that some federal courts have not asked whether the requested health services must be delivered by a physician, but instead have applied a multifactor test that considers, generally speaking, the nature and extent of the services at issue.”
 2. “The cost-based, multifactor test proposed by the District is supported by neither the statute’s text nor the regulations upheld in *Tatro*.”
 3. “We referenced the likely cost of the services and the competence of school staff as justifications for drawing a line between physician and other services.”
 - This case considered a test for ‘medical services’ that includes cost, referencing Congress’s clean intent to limit the costs school boards would be subject to. However, in total the court decides on a single test definition of ‘medical services’ which do not have to be school-funded, stating it to be backed more strongly by precedent and the law.
 - This will help my paper as a middle ground source.
- —. *Cedar Rapids Community School Dist. v. Garret F.* Brief Amicus Curiae of National School Boards Association. *Archive.org*, https://archive.org/details/micro_IA40385014_0074/micro_IA40385014_0074%2012.%20Amicus%20Curiae%20Brief
 - Amicus Curiae brief

- The author for this brief is the National School Boards Association, an organization made up of school boards & state school board associations across the country. At the time of the brief they represented school boards that educated “approximately 90 percent of all elementary and secondary students in the nation.” (United States Supreme Court, Brief Amicus Curiae of National School Boards Association 6).
- 3 quotes or paraphrases
 1. “[small school districts] typically lack the specialized staff and resources to perform complex constant health services.”
 2. “To provide a wide range of medical services, other programs – direct educational programs – may be sacrificed.”
 3. “the percentage of school spending on regular education declined from 80% to 59%, [...] the percentage spent on special education [...] increased
- References the large number of small school districts and resource issues. Brings up statistics showing that special education spending (required by law) has been eating into direct education funding.
- This will help as more of a “con” source.
- —. *Cedar Rapids Community School Dist. v. Garret F.* Brief Amici Curiae of National Association of Protection and Advocacy Systems et al. *Archive.org*, https://archive.org/details/micro_IA40385014_0074/micro_IA40385014_0074%2010.%20Amicus%20Curiae%20Brief/
 - Amici Curiae brief
 - The authors of this brief are large organizations with a purpose/history of advocacy for those with disabilities, advocacy/legal assistance for better schooling, or some combination of the two. As a whole, they have a wealth of experience both with the disability and education facets of the controversy.
 - 3 quotes or paraphrases
 1. “The IDEA is a ‘zero reject’ statute; it requires [...] services be provided to *all* children, regardless of the severity of their disabilities.”
 2. “The *Tatro* bright-line test promotes the intent of Congress to ensure that all students with disabilities, including those with health-related needs, have the opportunity to attend school and receive appropriate educational and related services in the least restrictive environment.”
 3. “To deprive a small group of students of the opportunity to benefit from attending school runs counter to all of the principles of the IDEA, the ADA, and other disability laws.”
 - References/emphasizes the total inclusivity of IDEA. Brings up Congress’s intent in passing IDEA and how that relates to the legal side of the controversy. References the greater surrounding context of disability law like the ADA, providing greater support for a general intent by the government to support and integrate those with disabilities.
 - This will help my paper as a “pro” source

- Walsh, Mark. “High Court Hears Case on Nursing Care for Students.” *Education Week*, 11 November 1998, <https://www.edweek.org/policy-politics/high-court-hears-case-on-nursing-care-for-students/1998/11>
 - News Article
 - The author of this article is a reporter who has covered education, especially education court cases. However, his focus has been on education law as a whole, not specifically education and disability, which may give him a more detached view of the controversy.
 - 3 quotes or paraphrases
 1. “before the enactment of the IDEA by Congress in 1975, such children often received no educational services at all.”
 2. “The Clinton administration also sides with the Frey family and argues that continuous nursing services are a related service under the IDEA.”
 3. “I should have the same rights as every other child who has a disability,” he said afterward.
 - References the previous state of disabled children, i.e. the state they would be in without this law, bringing up the more emotional/personal aspect of the controversy. Additionally adds weight of parts of the government (the executive branch) to the position which supports schools doing more for disabled children (the ‘pro’ side).
 - This will help my paper as a “pro” source.